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Enclosure No. 4 with Despatch No. 10.

神機營官弁兵丁總目

		和碩醇親王
		大學士文祥
		尚書崇綸
總理神機營事務王大臣		侍郎恩承
		侍郎榮祿
		專操大臣應差
		副都統景瑞
計開署內各等處		
印務處	官四員 弁兵十二名	文案處 官十八員 弁兵二十四名
營務處	官四十員 弁兵六十名	摺奏處 官四員 弁兵八名
糧餉處	官六員 弁兵十二名	支發處 官二員 弁兵六名

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No. 11. Peking, October 17th 1874.

Your Excellency:

In my despatch No. 10. of the 14th instant, I promised to give you information received through Chinese sources. I had first intended seeing Dr Kwei, but I was debarred from doing this by the necessity which became apparent to me to lead the British Minister, who is much opposed to me, to believe that I had very little to do with the negotiations now going on; and this I could not have done had I had a conference with Dr Kwei, of which Mr. Wade would have been certain to hear and would have thought it was with the knowledge of Mr. Okubo; and now that the British Minister is so well disposed and will, in my opinion, continue so as long as he sees a chance of working in accord with Mr. Okubo without fear of my stepping between him and the High Commissioner, I have thought it dangerous to awaken his suspicions. On the other hand, I

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was aware that Mr. Hart would not be displeased that I should believe that, if any settlement of our present difficulties with China were arrived at, he had been concerned in it, and therefore would gain some credit from it; and I determined to use him as my unofficial medium of communication with the Chinese.

To this effect I called upon him on the 12th instant, apparently for the purpose of asking him for Customs Reports. He broached the question of Mr. Okubo's mission and expressed his astonishment that I had not yet seen Ta Kwei. I replied that my position here was a difficult one; that I was not at liberty to make any proposition to Ta Kwei, as Mr. Okubo had determined that the offer of adjustment should come from China; that, if such an offer were not soon made, as China was arming extensively and thereby threatening Japan in her very existence, he would conclude that she had no intention of making one; that all China was arming for war to gain time, so that she might be better prepared to strike a blow at Japan, and this Mr. Okubo would not permit; that to this effect he had given the Tsung-li Yamên a certain number of days in which to give him a satisfactory reply; that this time would expire in three days after the return of the Emperor, who was expected on the 14th

or 15th instant; and that, if no reply came then, he would consider his mission at an end and return to Japan. I added that in such a case, I apprehended that China would be humiliated; for she was not ready for war while Japan was; and, since he had the ear of the Tsung-li Yamên, and the expectations of Japan were founded upon justice, I hoped he would exert himself in favor of peace. I then said that had he not spoken first, I would not have touched upon this subject with him; but since he had done so, I would be as frank with him as my position permitted, and I hoped he would reciprocate.

To this Mr. Hart replied that he had been twenty years in China, or in the service of China, and that he thought of leaving. He acknowledged the influence of the progressive policy of Japan upon China, and said that during the next ten years, it will bear its good fruit. Therefore he regretted having to leave at this juncture, but his health having been affected by over-work, he must have rest. He said the impression of China was that now that Japan had imitated foreign countries in almost everything, she wished to make the resemblance perfect by making war upon China and humiliating her. I replied that Japan had no such intentions; that she had imitated foreign nations only in such things as were calculated to make her strong and enable her to maintain her independence and honor against aggression from outside, and that, if China had followed her example, she would not now

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be in the position she is; that those concessions asked of her by foreign Powers which would have tended to weaken her, she had steadily refused to make, and in doing this she had strengthened the hands of China, who was also, for similar reasons, opposed to making them. Among these concessions was the opening of her country on an ex-territorial basis. As regarded Formosa, I said that Japan thought that, so long as it would remain unorganized, it would be a cause of quarrel between China and foreign powers; that it is a very important strategical point in Southeastern Asia, and if China would not occupy it, Japan must; that Japan went to aboriginal Formosa after having waited for two years after the murder of her people for the Chinese to do what she has lately undertaken herself, with the knowledge and consent of China, as may be proved by the letter from the Tsungli Yamên to H. I. J. M's Minister for Foreign Affairs of the 11th of May last; that in doing this she had no hostile design upon China; that what had caused the feelings of the people of Japan against China was the bad faith of the Chinese, as made apparent by the terms of settlement offered to General Saigo through Chen-pao-chen, at the same time that they were trying to secure my services by offering shameful bribes, and were making preparations for war; that all Japan wanted was her rights; and that, if China did not like the

situation in Formosa, which had been occasioned by her own neglect, she must make others satisfactory to Japan, and such as might be suggested by the sacrifices which Japan had made, both in blood and in money, in doing what China ought to have done herself in Formosa.

Mr. Hart then promised me that he would go to the Tsungli Yamên, and would give me an answer the next day.

The Emperor not having returned to Peking on the 13th, Mr. Hart could not accomplish anything at the Tsungli Yamên on that day. But he went there the next day, His Majesty having arrived; and after having the Chinese ministers, he called upon me. He said that, on the next day, the 15th, the Yamên would send a reply to Mr. Okubo, whereby a door might be left open for an adjustment of the present difficulties, if it were at all possible to arrive at any. He was particularly anxious to ascertain what amount of indemnity would satisfy Japan. To his enquiries upon that head, however, I replied that Mr. Okubo had full powers, and was taking very little advices from any one; that I was but indirectly connected with his mission, and did not assist at the conferences he held with his advisors; but that I was on excellent terms with him and knew that he was ready to be liberal with China if

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she would only evidence a desire for an adjustment; and that if the Tsung-li Yamên made any offer to him which I thought it was the duty of Japan to accept, I would back it with the High Commissioner with all my might. That, in my opinion, China would but lower herself in the eyes of the world if she were to step into Aboriginal Formosa without paying the expenses incurred by Japan there, and offering her a fair compensation for the blood shed and other indirect losses suffered by her during the expedition; and that it was easy to estimate by analogy, from precedents, what the amount to be offered should be. I expressed the formal belief that, should China show to Japan sufficient cause why the latter should leave Aboriginal Formosa, and offer her such compensation for her evacuation of it as she could accept without incurring the risk of losing prestige, she would give up the place. But if this were not done, she would remain there; and the state of affairs that must follow would, in my opinion, lead to a war. Mr. Hart then left me, stating that he was the more anxious for peace that he thought, if war were once commenced, it would be a long one. Without expressing any opinion upon this head, I replied to him that I sincerely hoped his efforts for the maintenance of peace would be successful.

On the next day, the 15th instant, I wrote

and sent to Mr. Okubo my Memo. No. 37, copy of which (Enclosure No 1) I beg to enclose; and on the day following I wrote and sent my memos. Nos. 38 and 39, copies of which (Enclosures Nos. 2 and 3,) I beg also to enclose.

Yesterday afternoon I had the honour of an interview with Mr. Okubo, who said that the indemnity he had intended asking was $5,000,000, but that he would willingly reduce it to $3,000,000 if the Chinese would recognize the right of Japan to Loo Choo. I informed him of what you had said to me on the subject before my departure from Takai; and besides, I said that, in my opinion, the fact of the Chinese paying an indemnity to Japan for the murder of Loo Chewans in Formosa would amount to a tacit recognition of the rights of Japan; and that, if the Loo Chew question were to be brought forward, it must not be as a question of sovereignty, but as one of tariff, which might be calculated to become a source of difference between the Government of China and Japan after the Formosa question had been adjusted, as long as the tribute should be continued to be paid by the Loo Chewans at Foochow. He asked me to prepare a memo on the subject.

In reply to my inquiry whether it would be well to let the Chinese know, in an indirect way, (for instance, through one of their spies, to whom I might give an opportunity of reading it among papers designedly left on my table) the amount of indemnity that would satisfy Japan, he said it were better not.

Having worked at my memo. No. 40 (Enclosure No. 4) during the night, I brought the same to Mr. Okubo this morning, and had the honor of a long conversation with him. He asked how, in my opinion, he should act in case the Chinese should not come forward with any proposition. I told him I thought they would make one; but should they fail to do so, I would advise him to give hints of the sacrifices and outlays made by Japan on account of the Formosa expedition, and the obligation, both to herself and to Japan, which rested on China to indemnify Japan for the same. He replied that he would be directed by circumstances.

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This afternoon, I was informed that a conference, by appointment and at the request of the Chinese, will be held at Mr. Okubo's house on the 18th — that is, tomorrow. This conference will decide, I should think, what the result of Mr. Okubo's mission will be. My opinion is that the Chinese will avoid discussing the question of their alleged right to Aboriginal Formosa, and simply acknowledge that they have been negligent in establishing it in the past; and that they will offer to pay an indemnity for the murder of the Loo Choo men. Whether this indemnity will be large enough to be considered by Japan as a sufficient compensation for evacuating the place, and whether it will be paid in a manner in no way derogatory to the honor and dignity of Japan, is a question difficult to answer now.

I have the honor to be
Your Excellency's
Most Obedient, humble Servant,

Chas. W. Le Gendre

His Excellency
Okuma Shigenobu,
Minister of Colonization.
&c. &c. &c.

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Enclosure No 1, with Despatch No 11.

Memd. No. 37.

It is important to note that, when we take by itself the despatch of the local authorities in Formosa (copy of which was furnished us by Mr. Williams) it is difficult to determine whether the document can be held to be proof that Aboriginal Formosa does not belong to China; and it is equally difficult to reply to the assertions made by the Tsung li Yamen that the officers who wrote that letter has nothing in view but to shirk their duties.

To give the despatch all the weight it really has, we must take it in connection with the official maps of China as published by authority of the Chinese Government. A reference to these maps will show that the officers stated the truth in the despatch alluded to; for truly the country is not marked on these maps, in proof of which I would point to the maps of the Jesuits des Mailla and Henderer and of Chang Sue King, Plates IV & VI. of the pamphlet published by me, "Is Aboriginal Formosa a part of the Chinese Empire?"

Mr. Williams (who, in this case, is probably merely the mouth-piece of the Tsung li Yamen) says that the Chinese Government never do mark on their maps the countries occupied by wild tribes that happen to be living within the limits of the Chinese Empire. But this is not true, as can

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to the maps of the Quang tong Provinces.
In these maps the whole lines of coast
of the Island of Hainan is given by the
Chinese Geographers; and the limits of
the wild tribes, called Limow Maw or Ichi Chaw,
that live on it are also traced, which
is not the case with the maps of
Formosa. And why! Because (as
the Chinese officers stated in the des-
patch alluded to above) the country of
the aborigines of Formosa, does not
belong to China, and has never been
claimed by her until the Japanese
invaded it this year.

The original atlases of Chang Sue King
and de Mailla and Henderer are hereby
furnished, that they may be produced, if
found advisable, in support of the
views herein expressed.

Peking, October 15th, 1874.

Respectfully Submitted

(signed) Chs. W. Le Gendre

His Excellency
Okubo Toshimichi,
H. I. J. M's Right Commissioner,
&c. &c. &c.

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Enclosure No 2 with Despatch No 11.

Memo no 38.

It is proposed to prove from the report of Mr Pelham Warren, an autograph copy of which is in my possession that when, on the 28 of July, 1870, that gentleman visited southern Formosa in search of the shipwrecked crew of the British ship "Loudoun Castle", the country south of Bangliao was not occupied by the Chinese. To this effect an extract from Mr Warren's report (Enclosure No 7 is appended to this memo.

If the country had been occupied by the Chinese the survivors would have given notice of the wreck to the officers exercising authority at that place in the name of the Chinese Government. But this was not done (see extract of Report page 4 lines 2 to 10).

Had the place been under the jurisdiction of the Chinese Government a Chinese officer would have been sent in search of the survivors of the wreck. But this was not done; for Mr Warren went himself to Sialiao, having left the Chinese officer who had been deputed by the Taotai to accompany him at Bangliao or Bangliao (see extract of Report, pages 1 & 2 lines 10 to 50).

Had the country been under Chinese rule, the survivors of the wreck would have been afforded an asylum by the Chinese. But this was not done, Chen Fu Yuen having kept them in his own house (see extract of Report page 2 lines 37 to 42).

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If the country had been under Chinese rule the survivors of the wreck would have been released from the hands of the aborigines by a Chinese officer. But this was not done, the Canadian Linguist having obtained their release (see Extract of Report, pages 3-4 lines 56 to 72).

Was the country been under Chinese rule, Tauketok the ruler of the 18 tribes, whose territory lies due East of Chen pu Town's tribe, would not have dared to send word to Mr Warren that he was anxious to "renew the "treaty with General Le Gendre", but would have desired to renew it with the Chinese (see extract of Report page 4 lines 73 to 80).

The positions referred to in this memo may be ascertained from the map annexed hereto. (See Enclosure No 2).

Peking, October 16, 1874

Respectfully submitted
Chas W. Le Gendre

H. E. Okubo Toshimichi
H. I. J. M's High Commissioner
&c &c &c

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Memo. No. 39.

H. I. J. M's Government considers Aboriginal Formosa to be outside of the Chinese Empire. Therefore the indemnity which they expect to receive for the pains taken, the blood spilt, and the treasure spent by them in punishing the inhabitants of that country for the murder of Japanese subjects by the Bontans, ought, strictly speaking, to be obtained from the people residing therein; and the recurrence of such atrocities as those committed by the Bontans ought to be averted by placing Aboriginal Formosa under a regularly constituted authority subject to the laws of Japan.

Should, however, China obtain the transfer of the Japanese claim over Aboriginal Formosa to herself she must expect to assume the responsibility which now rests on the inhabitants thereof. Therefore she must bind herself with H. I. J. M's Government,

First. To organize the country under a rule satisfactory to Japan.

Second. To pay a money indemnity to Japan.

The first obligation I will not now discuss.

The extent of the second obligation may be ascertained by comparison with other cases in which Claims similar to that now preferred by Japan have been made. No better instance can be quoted than the late case of the Ashantee war. Although the Ashantee territory is much further from London than is the Bontan territory from Tokei, yet the difficulties to be encountered were greater in Formosa than in the country of the Ashantees.

Now, the British collected £1,000,000, or a little less than $5000,000 from the Ashantees. Japan, however, might be satisfied with less, say Tls. 2,000,000, or $2,800,000. But this amount having once been claimed by H. I. J. M's High Commissioner, it should not, in my humble opinion, be reduced.

Peking, October 16th, 1874.

Respectfully Submitted
(Signed) Chas. W. Le Gendre.

His Excellency
Okubo Toshimichi
H. I. J. M's High Commissioner
etc etc etc

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Enclosure No 4 with Despatch No 11.

Memo. No. 40.

Points of Agreement.

Whereas, H.I.M. the Emperor of Japan, and H.I.M. the Emperor of China, are desirous of putting an end to the existing misunderstanding between the two countries, and of placing their relations on a more satisfactory footing in the future; and

Whereas, on the of May, 1873, the ratifications of a treaty of peace, amity and commerce were exchanged by the plenipotentiaries of H.I.M. the Emperor of China, and H.I.M. the Emperor of Japan; stipulating that certain duties should be paid according to a certain tariff, by all Japanese subjects when entering the ports open to foreign trade within the dominions of H.I.M. the Emperor of China, and by all Chinese subjects when entering the ports open to foreign trade within the dominions of H.I.M. the Emperor of Japan; and

Whereas, under old customs, the king of Lew Chew was bound every year to send deputies to the provincial city of Foochow, in the province of Fuh-kien, in the Empire of China, and other places in the said Empire of China, there to pay certain tributes, in consideration of which tribute freedom of trade with Foochow was granted to the subjects of the said king of Lew Chew; and

Whereas, H.I.M's Government, fully abiding by the principle that the absorption or incorporation of one state by another state does not discharge or release, within the limits of the absorbed or incorporated state, any obligations which the said absorbed or incorporated state may be under to a third power at the time of such absorption or incorporation, hereby formally acknowledges that the incorporation by the Empire of Japan on the day of , 18 , of the Kingdom of Lew Chew, at the request and with the consent of , the then king of the said kingdom of Lew Chew, now holding the position of an ex-Daimio and residing in Tokei, the capital city of the said Empire of Japan, as better stated in the Act of Incorporation signed at Tokei on the day of , 18 , does not discharge or release the said islands of Lew Chew [illegible]

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the empire of Japan, from the obligations which the said islands of Lew Chew have heretofore been under to China under old established customs, in the same manner as they are held by a convention with the United States of America proclaimed by the President of the said United States on the 9th day of March, 1855; and

Whereas, the payment of such tributes to the Empire of China would conflict with the stipulations of the treaty between China and Japan as aforesaid, and its enforcement by China might become a source of difficulty and misunderstanding between the two countries; and

Whereas, the inhabitants of that portion of the island of Formosa known as Southern Aboriginal Formosa did, on the day of December, 1871, murder fifty four Japanese of Lew Chew; and

Whereas, under conditions and stipulations verbally agreed upon between H. I. J. M's Embassador at Soyochima and the Tsung li Yamen, as stated in the despatch from the said Tsung li Yamen to H. I. J. M's Minister for Foreign Affairs, dated the 26th day, 3rd moon, 13th year of Tung Chi, H. I. J. M's Government has sent a mission to the inhabitants of the Southern portion of the said island of Formosa; and

Whereas, owing to the neglect on the part of H. I. C. M's Government to organize a regular form of government in the said region, the tribes of the said region have lived in a state of semi-barbarism, whereby they have been led to attack the escort accompanying the said mission, and thereby have caused a state of war to take place between H. I. J. M's Government and the inhabitants of the said region; and

Whereas, by this state of affairs, H. I. J. M's forces have been compelled to occupy and pacify the said region, thereby incurring an expense of two millions of Dollars to H. I. J. M's Government; and

Whereas, H. I. C. M's Government is anxious that the said region, because of its contiguity to Chinese settlements in the said island of Formosa, should not be occupied by any foreign state, but that it should be formally absorbed and incorporated into the Chinese Empire; and

Whereas, H. I. J. M's Government is anxious to maintain the best relations with China; and

Whereas, the evacuation of the portion of the said island of Formosa now occupied by H. I. J. M's forces may be a means of strengthening the good relations between the two countries;

Now, Therefore, the Government of H. I. M. the Emperor of Japan hereby agrees to evacuate the said portion of the island of Formosa occupied by Japanese forces as aforesaid, with a view that it should be formally absorbed and incorporated into the Chinese Empire;

Provided, that the Government of H. I. M. the Emperor of China shall pay to the Government of H. I. M. the Emperor of Japan three-fifths of the costs of the expedition sent by Japan to the said region of Aboriginal Formosa as

aforesaid; that the said region of Aboriginal Formosa shall be formally placed under a regularly constituted government subject to the laws of China, as hereinafter specified; and that the old custom whereby the Japanese of Lew Chew trading within the dominions of H. I. C. M. were compelled to pay a tribute to the officers of H. I. C. M. shall be abolished, the duties and dues specified in the Tariff of the treaty aforesaid being substituted in its stead and collected in the regular manner at all the ports in China open to Japanese trade, and which they may choose to enter for trade, under the terms of said treaty.

—

Here specify, in a special article, the manner and peace of paying the 3/5 of the costs of the expedition, to Japan.

—

Here specify, in a special article, the manner in which Southern Aboriginal Formosa shall be organized under Chinese rule.

—

Here specify, in a special article, the manner and time in which Aboriginal Formosa shall be evacuated by the Japanese troops.

Peking, October 17th 1874.

Respectfully Submitted.

(Signed) Chas W. Le Gendre

His Excellency

Okubo Toshimichi,

H. I. J. M's High Commissioner,

etc. etc. etc.

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H. M: Consulate, Tamsui, 20 Nov. 1871

On the 23 July the Chief mate of the British ship "Lowdown Castle" arrived at Tamsui with 12 men, part of her crew and reported the wreck and abandonment of said vessel on the S. W. Coast of Formosa. He further stated that the Captain and the remainder of the crew, in all seven men, had landed on the coast & immediately opposite the scene of the Wreck. Gathering from his description of the place that the ship was wrecked in Kevalan Bay and that the Captain and men had landed amongst the Koalut Savages, I at once took such steps as were in my power to lend to their assistance, and, on the 31st I received orders from H. B. M's Consul to proceed South myself in search of them.

On the 2d of August I started from Tamsui accompanied by a Chinese officer deputed by the Taotai. We travelled by chair to Pangliaou stopping at Lang Kiang for one

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night on the way. At Sangliaow I received intelligence that the messenger despatched by me from below had discovered the whereabouts of the Captain and Crew and had succeeded in obtaining the release of the Captain and an apprentice with whom they had returned to Laklan. I further learnt that the ship was not wrecked in Kua-Liang Bay, but in Liang Kiaw Bay, about 7 or 8 miles South of Sialiaow, and that the Captain and mate had fallen into the hands of the Chief or Headman of a Lualc tribe nominally under Chinese rule, but actually independent. This man whose name is Chen-pu-Tzuen, carries them 7 or 8 miles inland and demanded a ransom of $1000 per man. The Captain and apprentice were released on the understanding that they would forward the ransom for themselves and the remaining nine men.

× × × × After nearly a week spent

at Tsang Kiaw, I managed to get a small Sampan to go out, and proceeded in her to Liang Kiaw, a distance of about twenty to twenty five miles. The Chinese officer remained at Sanghiaw as he did not like to trust himself in a small boat. I warned of Sialiaow about dark on the 8th × × × × ×

The following morning 6 of the missing men walked into Sialiaw having managed to effect their escape; but the ninth, the Steward, had been so closely watched that he had not been able to get away.

After several fruitless attempts made through the Chinese to obtain his release, I sent the Consular Surgeon, who accompanied me, to Chen pu Tzuen to demand the release of the man and authorized him, in the event of it being absolutely necessary, to offer a reward not exceeding $500. The Chief Chen pu Tzuen at once agreed to

willingness to give up the man as also the Chronometers, clothes &c taken from the wreck, and left the question of reward to be decided by H.B.M.'s Consul; trusting his delay in giving him up by the plea that he did not like to trust him to the Chinese. The steward was sent in the following day and I, at once, started with the 9 men for Takao. × × × ×.

Chen pu Luen tribe is, as far as I can learn, not under the rule of Tau Ketok. I was informed at Liukiu that Tau Ketok had, on several occasions, inquired after General LeGendre and expressed a great desire to see him again in order that they might renew the treaty.

(Signed) J. Pelham Warren.

No 12. Peking, October 23rd, 1874.

Your Excellency:

I have been informed that the conference of the 18th instant closed almost point for point as I had prognosticated I would in my despatch to Your Excellency of the day previous. But a note which came from the Yamên during the afternoon of the 19th banished all the hopes of a prompt and satisfactory conclusion of our negotiations which this conference had led many to entertain. From a perusal of the Yamên's note, no doubt could be left that the great difficulty would be to induce the Chinese to satisfy the money demands of Japan. Mr. Hart made no mystery of this wish nor, he also said, whether truly or not I do not know, that it was only lately that, yielding to his pressing solicitations, they had agreed to include money considerations among those which might form the basis of a settlement, but that whatever money might be paid should not be considered as an indemnity for the costs of the expedition our right to send which they

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